

**Superior Court of the State of California
County of Orange**

**Tentative Rulings
Law and Motion Calendar
Department C23
Honorable David J. Hesseltine**

Hearing Date and Time: August 27, 2026, at 2:00 p.m.

Court Reporters: Official court reporters (i.e., court reporters employed by the court) are **NOT** typically provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it is that party's responsibility to provide a court reporter, unless the party has a fee waiver and timely requests a court reporter in advance of the hearing (see link at end of this paragraph for further information). Parties must comply with the Court's policy on the use of privately retained court reporters, which may be found at the following link: [Civil Court Reporter Pooling](#). For additional information regarding court reporter availability, please visit the court's website at [Court Reporter Interpreter Services](#).

Tentative Rulings: The court endeavors to post tentative rulings on the court's website no later than 12:00 noon on the date of the afternoon hearing. Tentative rulings will be posted case by case on a rolling basis as they become available. Jury trials and other ongoing proceedings, however, may prevent the timely posting of tentative rulings, and a tentative ruling may not be posted in every case. Please do not call the department for tentative rulings if one has not been posted in your case.

The court will not entertain a request to continue a hearing or any document filed after the court has posted a tentative ruling.

Submitting on Tentative Rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the courtroom clerk or courtroom attendant by calling (657) 622-5223. Please do not call the department unless **ALL** parties submit on the tentative ruling. If all sides submit on the tentative ruling and advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under California Rules of Court, rule 3.1312.

Non-Appearances: If no one appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The court also may make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Department C23 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department C23 at the Central Justice Center, located at 700 Civic Center Drive West in Santa Ana, California. All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time.

All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at

<https://www.occourts.org/media-relations/civil.html> before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at <https://www.occourts.org/media-relations/aci.html>. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at <https://www.occourts.org/media-relations/aci.html>. Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this department by either coming to the department at the designated hearing time or contacting the courtroom clerk at (657) 622-5223 to obtain login information. For remote appearances by the media or public, please contact the courtroom clerk 24 hours in advance so as not to interrupt the hearings.

NO FILMING, BROADCASTING, PHOTOGRAPHY, OR ELECTRONIC RECORDING IS PERMITTED OF THE VIDEO SESSION PURSUANT TO CALIFORNIA RULES OF COURT, RULE 1.150 AND ORANGE COUNTY SUPERIOR COURT RULE 180.

#	Case Name Case Number	Tentative
1.	<i>In re Crescent Capital Solutions Corp.</i> <i>2026-01577523</i>	OFF CALENDAR based on request for dismissal filed on August 4, 2026.
2.	<i>In Re: Barocio</i> <i>2026-01559770</i>	Before the court is the continued hearing on the petition of petitioner Shephard Douglas, LLC (Petitioner) for court approval of proposed transfer of certain periodic structured settlement payments payee Lucila Barocio (Payee) is scheduled to receive. Under the proposed transaction, Payee would transfer her rights to one lump sum payment of \$20,000 due February 16, 2028, one lump sum payment of \$30,000 due February 16, 2029, and one lump sum payment of \$40,000 due February 16, 2030. These payments total \$90,000 and have a discounted present value of \$77,892.70. In exchange for transferring the right to receive these monthly payments, Payee would receive a present, lump sum payment of \$45,000, which represents 57.7 percent of the payments' present value and equates to an equivalent interest rate of 24.7 percent if Payee were to take a loan. The court has received and reviewed the following documents and all exhibits and documents attached thereto: (1) the petition and amended petition for approval

		of transfer of structured settlement payment rights (ROA 2, 13); (2) the declarations of Payee in support of these petitions (ROA 2, Ex. 3 and ROA 21); (3) the notice of filing of underlying structured settlement documents; and (4) the various notices of hearing (ROA 6, 12, 19). This petition presents a close call because, although Petitioner and Payee have submitted supplemental information following the prior order by the court, much of that information is vague and conclusory and does not necessarily provide all the information the court sought. The court, however, in reviewing the prior cases involving Payee has been able to locate additional information. The court will expect more specific and responsive evidence in the future. Based on those documents and exhibits, the court makes the following findings as required by Insurance Code sections 10137 and 10139.5(a): (1) The transfer is fair and reasonable and in the best interest of Payee, taking into account the welfare and support of her dependents (none); (2) Payee has been advised in writing by Petitioner to seek independent professional advice regarding the transfer and has either received that advice or knowingly waived, in writing, the opportunity to receive the advice; (3) Petitioner has provided Payee with a disclosure form that complies with Insurance Code section 10136, and the transfer agreement complies with Insurance Code sections 10136 and 10138; (4) The transfer does not contravene any applicable statute or the order of any court or other government authority and otherwise complies with the requirements of Insurance Code section 10134, et seq.; (5) Payee understands the terms of the transfer agreement, including the terms set forth in the disclosure statement required by Insurance Code section 10136; and (6) Payee understands and does not wish to exercise her right to cancel the transfer agreement. Based on the foregoing, the petition is GRANTED. Petitioner's counsel is ordered to submit a proposed order approving the transfer consistent with the requirements of Insurance Code section 10134 et seq., and to give notice of this ruling.
3.	<i>Renner vs. Leuck</i> <i>2026-01553475</i>	Before the court is the amended petition of petitioner Robert K. Renner (Petitioner) to confirm contractual arbitration award. As more fully set forth below, the petition is CONTINUED TO THURSDAY, NOVEMBER 12, 2026, AT 2:00 P.M., IN DEPARTMENT C23, for Petitioner to file a proof of service showing proper service of

		the amended petition and hearing date on respondent Peter Leuck (Respondent). The court previously continued the hearing on this matter and ordered Petitioner to file an amended petition with specific information and to serve the amended petition and notice of hearing on Respondent. Although Petitioner did file the amended petition, the substitute service on Respondent was not proper. Pursuant to Code of Civil Procedure section 415.20, subdivision (b), a respondent may be substitute served by leave a copy of the pleadings at the person's dwelling house, usual place of abode, usual place of business, or usual mailing address other than a United States Postal Service post office box, in the presence of a competent member of the household or a person apparently in charge of their office, place of business, or usual mailing address. Here, the process server identified Respondent's usual place of business at 542 Hamilton Street, Costa Mesa, California 92626, and last known address at 1890 Rhodes Drive, Costa Mesa, California 92626. (ROA 28, Garcia Decl. ¶ 2.) Instead of substitute serving the pleadings at either of those addresses, the server left them with an individual at 1877 Rhodes Drive, Costa Mesa, California 92626, which is apparently a rental property which Respondent owns, and which was the subject of the underlying representation. (ROA 28, Garcia Decl. ¶4.) As the 1877 Rhodes Drive has not been shown to be a qualifying location under section 415.20, nor that the individual that received the pleadings was a qualifying individual under subsection (b), service is not proper. Although this may seem like a technicality, it is important to confirm proper service at this stage. If service is not proper, any judgment that is ultimately entered may later be challenged for lack of jurisdiction, and if that challenge is successful the judgment must be set aside and the entire process started over. Based on the foregoing, the hearing is CONTINUED as set forth above. Petitioner is ordered to timely serve the amended petitioner and notice of hearing on Respondent. Petitioner is ordered to give notice of this ruling and the continued hearing date.
4.	<i>Pinner vs. Griffin</i>	Before the court is the petition to confirm contractual arbitration award filed by petitioners John R. Pinner and Tara A. Pinner (collectively, Petitioners) against respondents Dirk T. Griffin and Pinner Construction

	2026-01576760	Company, Inc. (collectively, Respondents). As more fully set forth below, the petition is GRANTED. By this petition, Petitioners seeks to confirm the contractual arbitration award JAMS arbitrator Viggo Boserup, Esq. (Arbitrator) issued and served on May 18, 2026, awarding Petitioners \$1,242,636.16 against Respondents. (Petition § 8, Ex. 8c.) A petition to confirm a contractual arbitration award must (1) set forth the substance of or have attached a copy of the agreement to arbitrate; (2) set forth the names of the arbitrators; and (3) set forth or have attached a copy of the award and the written opinion of the arbitrators, if any. (Code Civ. Proc., §1285.4.) If a petition to confirm an arbitration award "is duly served and filed, the court shall confirm the award as made, whether rendered in this state or another state, unless in accordance with this chapter it corrects the award and confirms it as corrected, vacates the award or dismisses the proceeding." (Code Civ. Proc., § 1286.) If the award is confirmed, an enforceable judgment is entered with the same force and effect as a judgment in a civil action. (Code Civ. Proc., §1287.4.) Here, the petition complies with the foregoing requirements by attaching a copy of the parties' arbitration agreement, identifying the Arbitrator, and attaching a copy of the final award the Arbitrator issues and served on all parties. Accordingly, the petition must be granted and the award confirmed unless Respondents establish a basis for vacating or correcting the award. Respondents have not identified any petition they filed to vacate or correct the award. Instead, Respondent filed an opposition to the petition to confirm the award, arguing the award must be vacated because the Arbitrator allegedly failed to make all necessary disclosures regarding Respondent's prior counsel. Respondents' opposition, however, failed to establish any valid basis for vacating the award or denying the Petition. Contrary to Respondents' allegation the Arbitrator failed to provide disclosures on or after May 8, 2025, Petitioners provided the subject disclosures showing they were timely made. (Bisharat Decl. ¶ 21, Ex. 14.) Even if the subject disclosures had not been timely made, Respondents provided no evidence showing they timely served a notice of disqualification of the Arbitrator following the supposed failure to produce disclosures. (Code Civ. Proc., § 1281.91, subds (a) & (c).) Respondents also
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		proceeded with arbitration on the merits and appear to never have made any objections regarding the Arbitrator until the present opposition. Respondents therefore have waived any objection to the Arbitrator. (Code Civ. Proc., § 1281.91, subd (c); <i>Alper v. Rotella</i> (2021) 63 Cal.App.5th 1142, 1152–53 [“If a party learns the arbitrator failed to disclose information relevant to disqualification, the party must object ‘at the earliest practicable opportunity after discovery of the facts constituting the ground for disqualification.’ [Citation.] ‘While failure to disclose properly a ground for disqualification generally mandates vacation of the award, this rule only applies if the party moving to vacate “had no reason to know of the existence of a nondisclosed matter.” [Citation.] If a party is “aware that a disclosure is incomplete or otherwise fails to meet the statutory disclosure requirements,” the party “cannot passively reserve the issue for consideration after the arbitration has concluded.””].)) Finally, Respondents have identified no conflict with the Arbitrator which would require the Petition to be denied, or the award be vacated. For the foregoing reasons, the Petition is GRANTED. Petitioners are ordered to file a proposed judgment and to give notice of this ruling.
5.	<i>Forward Financing LLC vs. Aladdin VIP Transportation Inc</i> <i>2025-01532815</i>	Before the court is the continued hearing on the petition by petitioner Forward Financing, LLC (Petitioner) seeking to confirm a final arbitration award, dated December 1, 2025, by arbitrator Christina Magee, Esq., at Resolute Systems, LLC, in which Petitioner was awarded \$64,425.66 against respondents Aladdin VIP Transportation Inc. and Alaaeddin Atik (collectively, Respondents). As more fully set forth below, the petition is DENIED WITHOUT PREJUDICE. The court first heard this petition on March 26, 2026. At that time, the court continued the hearing because Petitioner failed to file a proof of service showing Respondents and been properly served with the petition and notice of the hearing. Specifically, the court ruled as follows: “Before the Court is the petition by petitioner Forward Financing, LLC (Petitioner) seeking to confirm a final arbitration award, dated December 1, 2025, by arbitrator Christina Magee, Esq., at Resolute Systems, LLC, in which Petitioner was awarded \$64,425.66 against respondents Aladdin VIP Transportation Inc. and Alaaeddin Atik

	(collectively, Respondents). As more fully set forth below, the hearing is CONTINUED TO THURSDAY, MAY 28, 2026, AT 2:00 P.M., IN DEPARTMENT C23, for proper service and notice. "Petitioner is required to serve the petition and notice of hearing at least 10 days prior to the hearing. (Code Civ. Proc., § 1290.2.) The manner in which service is to be made is governed by Code of Civil Procedure section 1290.4, which provides as follows: “(a) A copy of the petition and a written notice of the time and place of the hearing thereof and any other papers upon which the petition is based shall be served in the manner provided in the arbitration agreement for the service of such petition and notice. “(b) If the arbitration agreement does not provide the manner in which such service shall be made and the person upon whom service is to be made has not previously appeared in the proceeding and has not previously been served in accordance with this subdivision: “(1) Service within this State shall be made in the manner provided by law for the service of summons in an action. “(2) Service outside this State shall be made by mailing the copy of the petition and notice and other papers by registered or certified mail. Personal service is the equivalent of such service by mail. Proof of service by mail shall be made by affidavit showing such mailing together with the return receipt of the United States Post Office bearing the signature of the person on whom service was made. Notwithstanding any other provision of this title, if service is made in the manner provided in this paragraph, the petition may not be heard until at least 30 days after the date of such service. “(c) If the arbitration agreement does not provide the manner in which such service shall be made and the person on whom service is to be made has previously appeared in the proceeding or has previously been served in accordance with subdivision (b) of this section, service shall be made in the manner provided in Chapter 5 (commencing with Section 1010) of Title 14 of Part 2 of this code.’ "California Rules of Court, rule 3.1300(c) requires a proof of service to be filed at least five court days prior to the hearing. "Here, no proof of service has been filed showing the petition and notice of hearing have been served on
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		Respondents. Accordingly, the hearing is CONTINUED as set forth above for Petitioner to properly and timely serve the petition, notice of hearing, and any other necessary documents.” As of the May 28, 2026 hearing, Petitioner had not filed any notice of ruling, notice of hearing, or proof of service showing Respondent has received any documents filed in this case or received any notice of this hearing. Petitioner also has not filed anything demonstrating any efforts have been made to located and serve Respondents. Counsel for Petitioner, however, appeared at the May 28, 2026 hearing and requested another continuance. The Court granted the request for a continuance but issued a Minute Order stating, in part: “The court grants 1 final continuance. “The Petition to Confirm Arbitration Award is continued to 08/27/2026 at 02:00 PM in this department. “Petitioner is ordered to file a proof of service showing proper service on Respondents or declaration explaining the status and all efforts of service no later than 08/17/2026.” Petitioner has not filed any documents since the last hearing—not a new notice of hearing, not a proof of service, nothing. Based on the repeated failure to serve Respondents, as well as the failure to provide the court with any update regarding the efforts to locate and serve Respondents as the court ordered, the petition is DENIED WITHOUT PREJUDICE. Petitioner’s counsel is ordered to give notice of this ruling.
6.	<i>Azizi vs. Mobilitas Insurance Company</i> <i>2026-01558067</i>	Before the court is the amended motion of petitioner Mirwais Azizi (Petitioner) to consolidate arbitrations and compel a single joint arbitration proceeding. As set forth below, the motion is DENIED as Petitioner has failed to adequately demonstrate consolidation is appropriate or required in this case. Indeed, the showing and argument is far too conclusory and fails to even cite the court to the controlling arbitration provisions or other relevant contractual terms. By this motion, Petitioner seeks to consolidate arbitration with two separate insurance companies regarding his

	recovery for injuries he suffered in a July 18, 2024 automobile accident. The first arbitration concerns Petitioner’s uninsured motorist benefits under his automobile insurance with respondent Mobilitas Insurance Company (Mobilitas). Arbitration between Mobilitas and Petitioner is required by the terms of their insurance policy and the mandatory arbitration provision included therein under Insurance Code section 11580.2, subdivision (f). Petitioner, however, has not cited the court to or otherwise quoted the terms of the arbitration agreement included in Mobilitas’s policy. The second arbitration relates to the benefits to which Petitioner is allegedly entitled pursuant to an occupational accident insurance policy issued by respondent United States Fire Insurance Company (US Fire). The parties acknowledge there is an arbitration provision in the US Fire policy that applies to Petitioner’s claim for benefits. Petitioner, however, has not cited the court to or otherwise quoted the terms of the arbitration agreement in the US Fire policy. Code of Civil Procedure section 1281.3 authorizes a court to consolidate contractual arbitrations when three conditions are met. Specifically, section 1281.3 states, “A party to an arbitration agreement may petition the court to consolidate separate arbitration proceedings, and the court may order consolidation of separate arbitration proceedings when: [¶] (1) Separate arbitration agreements or proceedings exist between the same parties; or one party is a party to a separate arbitration agreement or proceeding with a third party; and [¶] (2) The disputes arise from the same transactions or series of related transactions; and [¶] (3) There is common issue or issues of law or fact creating the possibility of conflicting rulings by more than one arbitrator or panel of arbitrators.” Contrary to US Fire’s contention, although Insurance Code section 11580.2, subdivision (f), requires uninsured motorist arbitration, such arbitration nonetheless is treated as contractual arbitration subject to the California Arbitration Act because it is ultimately mandated by the insurance policy terms. (<i>Pilimai v. Farmers Ins. Exch. Co.</i> (2006) 39 Cal.4th 133, 141.) Accordingly, if the foregoing three conditions are established, then the court “may”—i.e., has the discretion—to consolidate an uninsured motorist arbitration with another contractual arbitration. Here, there does not appear to be much dispute the first two conditions are satisfied—i.e., (1) Petitioner is subject to
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	an arbitration agreement with Mobilitas and a separate arbitration agreement with US Fire, and (2) Petitioner's disputes with Mobilitas and US Fire arise out of the same transaction—i.e., the July 18, 2024 automobile accident. Petitioner's motion turns on whether there are common issues of law or fact creating the possibility of conflicting rulings by more than one arbitrator or panel of arbitrators. Petitioner has failed to convince the court this condition is present in this case. In the moving papers, Petitioner does not even identify the common issues other than to say liability and damages from the July 18, 2024 accident should be handled in a single arbitration proceeding because that would be more efficient. That, however, paints with far too broad of a brush. The scope of uninsured motorist arbitration is limited to two issues. Insurance Code section 11580.2, subdivision (f) states, "[T]he determination as to whether the insured shall be legally entitled to recover damages, and if so entitled, the amount thereof, shall be made by agreement between the insured and the insurer or, in the event of disagreement, by arbitration." The statute therefore requires arbitration of two issues only: (1) whether the insured is entitled to recover against the uninsured motorist; and (2) if so, the amount of the damages. (<i>Freeman v. State Farm Mut. Auto. Ins. Co.</i> (1975) 14 Cal.3d 473, 480; <i>Bouton v. USAA Cas. Ins. Co.</i> (2008) 43 Cal.4th 1190, 1200.) The damages an insured may recover under his or her uninsured motorist coverage are the damages which the insured is entitled to recover from the uninsured motorist. (<i>Freeman, supra</i>, 14 Cal.3d at p. 480.) Any coverage issues are reserved for the courts. (<i>Bouton, supra</i>, 43 Cal.4th at p. 1201.) In terms of the arbitration with US Fire under its occupational accident insurance policy, the moving papers do not cite the court to the arbitration provision or otherwise identify the scope of the issues presented under that policy. What the court can say is that the arbitration under this policy is purely contractual; it does not have the statutory underpinnings the uninsured motorist arbitration does. According to US Fire's opposition, its policy provides benefits for injuries sustained in the course of occupational activities. (Opp. at p. 2, line 20.) The opposition goes on to explain US Fire's policy "is limited to reimbursing reasonable charges for medical services and supplies that have been ordered by a physician for the diagnosis or
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		treatment of an occupational accident and deemed medically necessary. This coverage does not address tort liability. It does not compensate for pain and suffering, emotional distress, lost wages, or any other category of general or non-medical special damages. It is a medical-expense reimbursement benefit, bounded by the policy's own definitions of 'reasonable charges,' 'medically necessary,' and 'occupational accident.' The scope of an arbitration under this policy would therefore be confined to whether medical charges satisfy the policy's internal criteria for reimbursement, an inquiry that has nothing to do with the tort-based liability and damages questions at the heart of the Mobilias arbitration." (Opp. at p. 4, lines 22 to p. 5, line 3.) Unfortunately, much like the moving papers, the opposition does not cite the court to the arbitration provision or the other relevant terms of the policy. In the reply, Petitioner argues the issues under US Fire's policy whether the charges for the treatments received are reasonable and medically necessary overlap with the medical causation, treatment necessity, and damages determinations to be made in the uninsured motorist arbitration. (Reply at p. 3, lines 19-23.) The reply, however, goes on to argue the definitions of medically necessary in US Fire's policy inappropriately reserved that determination to its own standards and medical personnel. Indeed, the reply argues consolidation should be ordered to "prevent [US Fire] from relying upon unilateral determinations of medical necessity and reasonableness to fragment or delay adjudication." That is not an appropriate basis for determining whether the common issue condition is satisfied. Petitioner simply has not shown either the liability issues or the damages issues in the two arbitrations are the same or otherwise give rise to a risk of conflicting rulings. Whether the uninsured driver is liable is different than whether Petitioner was injured in an occupational accident. Moreover, the issues regarding the tort damages potentially recoverable in the uninsured motorist arbitration do not appear to be the same as the much narrower damages issues presented in the arbitration under US Fire's policy. Based on the foregoing, the motion is DENIED. US Fire's counsel is ordered to give notice of this ruling.
7.	<i>Tran vs. City of Fountain Valley</i> 2026-01569494	Before the court is the petition by petitioner James Tran (Petitioner) for relief from the government claims

	presentation requirement. As more fully set forth below, the petition is DENIED. Initially, the court notes there is no valid proof of service showing the petition was served on respondents City of Fountain Valley and Fountain Valley Police Department (collectively, Respondents). The proof of service filed May 11, 2026 (ROA 6) fails to identify what, if any documents were served, and the proof of service is not signed. Further, Petitioner failed to file any notice of hearing regarding the petition, and therefore also presumably failed to serve any such notice. The proof of service attached to Petitioner's "Trial Brief" does not cure these deficiencies because it does not identify the petition as being served or any notice of hearing. Regardless of any service deficiencies, the petition fails to satisfy the statutory requirements of Government Code section 946.6, subdivision (b). That statute requires any petition submitted to the court seeking relief from an untimely claim under the Government Claims Act must show "(1) That application was made to the board under Section 911.4 and was denied or deemed denied. [¶] (2) The reason for failure to present the claim within the time limit specified in Section 911.2. [¶] (3) The information required by Section 910." Government Code section 910 states as follows: \ "A claim shall be presented by the claimant or by a person acting on his or her behalf and shall show all of the following: "(a) The name and post office address of the claimant. "(b) The post office address to which the person presenting the claim desires notices to be sent. "(c) The date, place and other circumstances of the occurrence or transaction which gave rise to the claim asserted. "(d) A general description of the indebtedness, obligation, injury, damage or loss incurred so far as it may be known at the time of presentation of the claim. "(e) The name or names of the public employee or employees causing the injury, damage, or loss, if known. "(f) The amount claimed if it totals less than ten thousand dollars (\$10,000) as of the date of presentation of the
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	claim, including the estimated amount of any prospective injury, damage, or loss, insofar as it may be known at the time of the presentation of the claim, together with the basis of computation of the amount claimed. If the amount claimed exceeds ten thousand dollars (\$10,000), no dollar amount shall be included in the claim. However, it shall indicate whether the claim would be a limited civil case.” Here, Petitioner fails to provide much of this information. Petitioner does not provide a copy of the claim submitted to Respondents and the petition does not clearly describe the “damage or loss incurred so far as it may be known at the time of presentation of the claim.” The petition also does not identify the persons involved or whether such is known. Further, the petition does not address damages, if known, or whether this would be a limited civil case. Moreover, Petitioner has failed to submit sufficient evidence establishing mistake or excusable neglect. Government Code section 946.6(c) provides, “The court shall relieve the petitioner from the requirements of Section 945.4 if the court finds that the application to the board under Section 911.4 was made within a reasonable time not to exceed that specified in subdivision (b) of Section 911.4 and was denied or deemed denied pursuant to Section 911.6 and that one or more of the following is applicable: (1) The failure to present the claim was through mistake, inadvertence, surprise, or excusable neglect unless the public entity establishes that it would be prejudiced in the defense of the claim if the court relieves the petitioner from the requirements of Section 945.4.” “The showing required of a petitioner seeking relief under the authority of Government Code, section 946.6 on the grounds of mistake, inadvertence, surprise or excusable neglect is the same as required under section 473 of the Code of Civil Procedure for relieving a party from a default judgment.” (<i>Flores v. Bd. of Supervisors</i> (1970) 13 Cal.App.3d 480, 483.) The purported “mistake” made by Petitioner is that he was not sure when his claim accrued. (Petition ¶¶18-23.) Lack of knowledge of the law is not a sufficient basis for relief. Litigants who choose to represent themselves must be treated in the same manner as represented parties and must follow the correct rules of procedure. (<i>Rapleyea v. Campbell</i> (1994) 8 Cal.4th 975, 984-985; <i>Nwosu v. Uba</i> (2004) 122 Cal.App.4th 1229, 1246-1247.) A self-represented litigant is not entitled to any greater consideration than other litigants and attorneys.
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		(<i>Petrosyan v. Prince Corp.</i> (2013) 223 Cal.App.4th 587, 594 [self-represented litigants are entitled to same treatment as represented parties].) A cause of action accrues when the injury occurs. Petitioner asserts in his petition that he believed the cause of action arising from the seizing of his dog on September 16, 2025, did not accrue on the day the dog was seized because there were “continuing administrative hearings.” (Petition at p. 3, line 9.) But he concedes his injuries began on that day and any injuries relating to the administrative proceedings were “additional” injuries. (Petition at p. 2, line 14.) Petitioner also concedes the administrative proceedings were conducted by Orange County Animal Care, not Respondents. Government Code section 901 states, “For the purpose of computing the time limits prescribed by Sections 911.2, 911.4, 945.6, and 946.6, the date of the accrual of a cause of action to which a claim relates is the date upon which the cause of action would be deemed to have accrued within the meaning of the statute of limitations which would be applicable thereto if there were no requirement that a claim be presented to and be acted upon by the public entity before an action could be commenced thereon.” “For purposes of calculating these time limits, the date on which an action accrues is the date upon which it would be deemed to have accrued under the applicable statute of limitations. (Gov. Code, § 901.) As a general rule, the date of accrual is the date the plaintiff incurred injury as a result of the defendant’s alleged wrongful act or omission. (<i>Loehr v. Ventura Cnty. Cmty. Coll. Dist.</i> (1983) 147 Cal.App.3d 1071, 1078.) As Petitioner alleges he was harmed on the day his dog was seized, the claims arising therefrom occurred on the day the dog was seized. As a result, Tran’s claim accrued on September 26, 2025. He therefore did not timely present the claim to the respondents and he has not established the failure to timely present the claim was through mistake, inadvertence, surprise or excusable neglect. Based on the foregoing, the petition is DENIED. Respondents’ counsel is ordered to give notice of this ruling.
8.	<i>Emerald Bay Community Association vs. Kinstler</i>	Before the court is the motion to enforce settlement pursuant to Code of Civil Procedure section 664.6 filed by intervenor Igor Olenicoff as Trustee of the Olenicoff Personal Residence Trust (Olenicoff). Olenicoff seeks to

2017-00923112	enforce the January 2019 written settlement agreement (Settlement Agreement) entered into between Olenicoff, plaintiff Emerald Bay Community Association (Association), and defendants Charles Kinstler, Jr. and Lynda Kinstler, as Trustees of the Kinstler Living Trust dated 9/6/1991 (collectively, Kinstlers). For the reasons set forth below, the motion is DENIED. Initially, the court notes Olenicoff and the Association filed two versions of multiple documents relating to the motion— i.e., a public version with redactions, and a purportedly lodged, unredacted version of each document conditionally under seal pursuant to California Rules of Court 2.551(b)(3). Specifically, Olenicoff filed two versions of the motion (ROA 194, 202), a declaration by Olenicoff (ROA 195, 203), a declaration by attorney Ault (ROA 196, 204), and the reply (ROA 226, 228). Olenicoff also submitted a conditionally sealed proposed judgment (ROA 205). The Association filed two versions of its opposition (ROA 213, 217) and evidentiary objections (ROA 215, 218). No documents may be filed under seal without a court order. (Cal. Rules Ct., rule 2.551(a).) In general, any party seeking to file a document under seal must make a motion or application to seal the document. However, when the document sought to be sealed is subject to a protective order or confidentiality agreement, a party may conditionally lodge a document and put the onus on any other party who may want the document sealed to seek a court order to seal the document. (Cal. Rules Ct., rule 2.551(b)(3).) That is what both Olenicoff and the Association have done here. Rule 2.551(b)(3)(B) requires any party who may want the document sealed to bring a motion to seal within 10 days of notice of the document being submitted. Here, the foregoing documents were filed between June 5, 2026, and August 20, 2025. The court has not received any motion to seal from any interested party. <u>Accordingly, the court will hear from all interested parties at the hearing, but unless some legal and good cause is established at the time of the hearing, the court will order the redacted copies struck and the unredacted copies filed in the public register of actions.</u> On the merits, Code of Civil procedure section 664.6 provides “[i]f parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case,
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	or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement.” (Code Civ. Proc., § 664.6.) “A court ruling on a motion under CCP § 664.6 must determine whether the parties entered into a valid and binding settlement. A settlement is enforceable under section 664.6 only if the parties agreed to all material settlement terms. The court ruling on a motion may consider the parties’ declarations and other evidence in deciding what terms the parties agreed to, and the court’s factual findings in this regard are reviewed under the substantial evidence standard.” (<i>Hines v. Lukes</i> (2008) 167 Cal.App.4th 1174, 1182 [internal citations omitted].) “Although a judge hearing a section 664.6 motion may receive evidence, determine disputed facts, and enter the terms of a settlement agreement as a judgment (Citation), nothing in section 664.6 authorizes a judge to create the material terms of a settlement, as opposed to deciding what terms the parties themselves have previously agreed upon.” (<i>Weddington Productions, Inc. v. Flick</i> (1998) 60 Cal.App.4th 793, 810.) Olenicoff failed to show he may enforce the Settlement Agreement pursuant to Code of Civil Procedure section 664.6. The February 2019 Stipulated Judgment entered in this matter resolved the entirety of the parties’ disputes in this action and thus disposed of the action. The court’s jurisdiction over this matter therefore terminated at that time. (See <i>Wackeen v. Malis</i> (2002) 97 Cal.App.4th 429, 437 [“When a court has jurisdiction over the parties and subject matter of a suit, its jurisdiction continues until a final judgment is entered.”]; <i>Casa de Valley View Owner’s Assn. v. Stevenson</i> (1985) 167 Cal.App.3d 1182, 1191 [same].) As such, unless the parties requested the court retain jurisdiction under section 664.6, the court would not have jurisdiction to hear this motion. The Stipulated Judgment itself contains no mention of section 664.6. Moreover, although the notice of settlement filed by the Association referred to a motion under section 664.6, no such motion was ever filed. Olenicoff relies on sections 5.1 and 7.7 of the Settlement Agreement, but neither of these sections ask the court to retain jurisdiction under section 664.6. Section 5.1 simply states the Association will file a noticed motion pursuant to section 664.6 to have the court enter judgment in conformity with the Stipulated Judgment, but again that
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		motion was never filed. The Association ultimately only filed a "Request for Entry of Judgment Pursuant to Stipulation" which made no mention of section 664.6. (See ROA 180.) Section 7.7 of the Settlement Agreement states, "The Parties agree that this [sic] Agreements and obligations are enforceable under Code of Civil Procedure section 664.6." This language acknowledges the parties ability to seek to have the court enforce the settlement agreement, but it does not in any way request the court to retain jurisdiction to enforce the Settlement Agreement after judgment or a dismissal is entered. Indeed, this language is not a clear request for retention of jurisdiction under section 664.6. (See <i>Weddington Productions, Inc. v. Flick</i>, <i>supra</i>, 60 Cal.App.4th at pp. 800-801 [language stating "'All parties agree this settlement is enforceable under CCP 664.6' . . . [¶] has little significance since any settlement agreement memorialized in a signed writing is enforceable pursuant to section 664.6, whether the agreement expressly so states or not"]; <i>Wackeen v. Malis</i>, <i>supra</i>, 97 Cal.App.4th at p. 440 [a request for retention of jurisdiction "must be express, not implied from other language, and it must be clear and unambiguous"].) Assuming for the sake of argument that the court has jurisdiction to enforce the Settlement Agreement pursuant to section 664.6, the Settlement Agreement does not explicitly require the Association and the Kinstlers to maintain the ficus trees in front of the Kinstlers' property at 15 feet or lower, as Olenicoff contends. Section 2.1 of the Settlement Agreement, cited by Olenicoff, sets forth requirements to be included in the Kinstlers' preliminary remodeling plans. Section 2.1 does not expressly impose any ongoing requirement that the Association or the Kinstlers are to maintain the ficus trees at 15 feet or lower. Nor does the Settlement Agreement contain any provision specifying the remedy for any alleged breach of section 2.1. Additionally, Olenicoff seeks to have the height of the ficus trees measured in reference to the 1960 Topographical Survey referenced in a preceding paragraph of section 2.1, rather than measured "by the furthest uphill tree to the left of the Kinstlers' driveway" as stated in the provision regarding the ficus trees. Olenicoff's motion thus improperly asks the court to essentially rewrite the Settlement Agreement. Olenicoff also points to the Grant of Easement which is referenced in section 2.1 of the Settlement Agreement. Although the Grant of Easement may create an obligation for the Kinstlers to maintain the ficus trees at a 15-foot
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		maximum, here, Olenicoff seeks to enforce the Settlement Agreement which contains no such express obligation. Based on the foregoing, the motion is DENIED. The Association's and the Kinstlers' requests for judicial notice are GRANTED as to the existence of and legal effects of the records, but not as to the truth of any disputed facts asserted therein. (Evid. Code § 452, subd. (d); <i>Fontenot v. Wells Fargo Bank, NA</i> (2011) 198 Cal.App.4th 256, 264; <i>Arce v. Kaiser Foundation Health Plan, Inc.</i> (2010) 181 Cal.App.4th 471, 482.) The Association's evidentiary objections are OVERRULED. Counsel for the Association is ordered to give notice of this ruling.
9.	<i>Parkhouse Residences, LLC v. Allies Ornamental Iron Works, Inc.</i> 2026-01585016	OFF CALENDAR based on request for dismissal filed on August 11, 2026
10.	<i>Fernhill Owners Community Association No. 1 vs. Garra</i> 2019-01069232	Before the court is an Order to Show Cause Re: Sale of Dwelling issued by this court on June 22, 2026, regarding the property located at 14671 Van Buren Street, Midway City, California 92655 (Property). The Order to Show Cause was issued pursuant to the application of plaintiff and judgment creditor Fernhill Owners Community Association No. 1 (Judgment Creditor) for an order to sell the interest of defendants and judgment debtors Terese Helene Garra and Terese Helene Garra, as Trustee of the Terese Helene Garra Trust (5/24/19) (collectively, Judgment Debtor) in the Property to satisfy the judgment entered in this case. Judgment Creditor presented evidence showing there is currently no homeowner's exemption or disabled veteran's exemption for the Property. (Speights Decl., ¶¶ 10-12; Exh. G.) Judgment Creditor also presented evidence showing Judgment Debtor resides elsewhere and the Property is a rental property. (Speights Decl., ¶¶ 9, 20; Exh. F.) As such, the Property is not subject to a homestead exemption. (See Code Civ. Proc., § 704.710(c).) Notice of the Order to Show Cause was duly given but no response has been filed with the court. Judgment Debtor

		thus failed to meet her burden to show the Property is, in fact, a homestead. (Code Civ. Proc., § 704.780(a)(1).) Based on the foregoing, Judgment Creditor's application is GRANTED and an order for the sale of the dwelling will issue. (Code Civ. Proc., § 704.780(b).) Counsel for Judgment Creditor is to submit a proposed order consistent with this ruling and Code of Civil Procedure section 704.780, subdivision (b). Counsel for Judgment Creditor shall give notice.
11.	<i>Pinesett vs. Coral Motel</i> 2021-01179977	No Tentative Ruling Will Be Posted
12.	<i>Topacio vs. Osburn</i> 2026-01572780	Before the court is the petition for order authorizing discovery to perpetuate and preserve evidence under Code of Civil Procedure section 2035.010 et seq. filed by Petitioner Darlene Topacio (Petitioner). Petitioner also has filed a supplement to the petition and notice of hearing on the petition. As more fully set forth below, the hearing on the petition is CONTINUED TO THURSDAY, NOVEMBER 19, 2026, AT 2:00 P.M., IN DEPARTMENT C23, for proper service and proof thereof. Code of Civil Procedure section 2035.040 requires Petitioner to serve all adverse parties with copies of the petition and notice of hearing at least 20 days prior to the hearing. That service must be made in the same manner as service of summons. (Code Civ. Proc., § 2035.040, subds. (a) & (b).) Although the petition includes the addresses for many of the respondents (see, e.g., Pet. At p. 2, lines 19-27), there is nothing in the court's records showing any respondent has been served or what efforts have been made to serve respondents. California Rules of Court, rule 3.1300(c) requires a proof of service to be filed at least five court days prior to the hearing. Based on the foregoing, the hearing on the petition is CONTINUED as stated above. At least five court days prior to the continued hearing date, Petitioner is ordered to file proofs of service on all respondents or declarations and other admissible efforts describing the efforts made to serve all respondents and the status of such service. Petitioner's counsel is ordered to give notice of this ruling.

13.	<i>Interinsurance Exchange Of The Automobile Club vs. Tyler</i> <i>2026-01565527</i>	OFF CALENDAR based on notices of withdrawal filed on August 11, 2026.
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